

24TRCV03057 24TRCV03057

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LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Thursday, August 13, 2026

Department M Calendar No.

PROCEEDINGS

Maria

Del Rosario Heredia De Guerrero v. Chedraui USA, Inc., et al.

24TRCV03057

1. Chedraui USA, Inc.'s Motion for Summary Judgment

TENTATIVE RULING

Chedraui USA, Inc.'s Motion for
Summary Judgment is denied.

Background

Plaintiff filed the Complaint on September 12, 2024.

Plaintiff alleges that she slipped at Defendant's store. Plaintiff alleges the following causes of action: 1. Negligence; 2. Premises Liability.

Objections

Plaintiff's objections:

Declaration of David Godinez – Objections 1 to 9 are overruled.

Exhibits E to H – Objections are overruled.

Defendant's objections:

Defendant's objection 1 is overruled.

Motion for Summary Judgment

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

(Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal.4th 826, 843.) "Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2). "If the plaintiff cannot do so, summary judgment should be granted." Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

"A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." Code Civ. Proc., § 437c(p)(1).

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

The Complaint determines the scope of relevant issues on a motion for summary judgment and the motion may not be granted or denied on issues not raised by the pleadings. See

Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258; See also Nieto v. Blue Shield of Calif. Life & Health Ins. Co. (2010) 181 Cal.App.4th 60, 74.

Defendant moves for summary judgment pursuant to CCP § 437c. The motion "is made on the grounds that there is no triable issue of material fact as to Defendant's lack of notice and that Plaintiff cannot establish one or more essential elements of her premises liability claim, and that Defendant is entitled to judgment as a matter of law." (Notice of Motion, p. 2, lines 4-6).

"The elements of a cause of action for negligence are duty, breach, causation, and damages." Johnson v. Prasad (2014) 224 Cal.App.4th 74, 78. "The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." McIntyre v. The Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.

Civil Code section 1714(a) provides, in relevant part:

"Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury

upon himself or herself.” “Since Rowland v. Christian (1968) 69 Cal.2d 108, the liability of landowners for injuries to people on their property has been governed by general negligence principles.” Pineda v. Ennabe (1998) 61 Cal.App.4th 1403, 1407. “The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence.” Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.

“[C]onstructive notice may be imputed if it can be shown that an obvious danger existed for an adequate period of time before the accident to have permitted the [public entity], in the exercise of due care, to discover and remedy the situation.” Carson v. Facilities Development Co. (1984) 36 Cal.3d 830, 842–43 (internal citations and quotations omitted). “Because the owner is not the insurer of the visitor’s personal safety, the owner’s actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner’s lack of knowledge is not a defense, [t]o impose liability for injuries suffered by an invitee due to [a] defective condition of the premises, the owner or occupier must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises....” Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1206 (internal citations and quotations omitted).

Defendant has not met its initial burden to show that Plaintiff’s causes of action have no merit by showing that one or more elements of the causes of action cannot be established. Thus, the burden does not shift to Plaintiff to provide specific facts to show that a triable issue of material fact exists as to her causes of action. CCP § 437c(p)(2).

Defendant submitted evidence to attempting to show that Plaintiff does not know how long the transparent liquid surface had been on the ground or the source of the liquid. Also, Defendant submitted evidence contending that Plaintiff allegedly slipped on a transparent liquid surface but that the area had been dry swept first approximately 9 minutes before the slip and then second only 30 seconds prior to the incident. (Defendant’s Separate Statement of Facts and Supporting Evidence, 1-12). Thus, Defendant argues that no agent of Defendant had actual notice of a dangerous condition. In addition, Defendant contends that the thirty second period between the dry sweep and the

slip cannot constitute constructive notice. *Girvetz v. Boys' Market, Inc.* (1949) 91 Cal.App.2d 827 (banana peel on the ground for 90 seconds cannot constitute constructive notice). Therefore, Defendant contends that Plaintiff cannot establish actual or constructive notice.

Defendant primarily relies on the surveillance video of the incident. The Court notes that no first-hand declaration was submitted from the employee who conducted the sweep around the area of the slip. Defendant argues that the area had been dry swept 9 minutes before and then 30 seconds prior to the incident. However, the video contradicts Defendant's argument. The video only shows that the employee casually swept briefly at a location close to the area of the slip but does not show that the employee actually swept the area of the slip or even looked at the area of the slip. This is for both of the sweeps occurring 9 minutes before and 30 seconds before the incident.

Thus, Defendant's evidence does not meet its burden to show that it did not have constructive notice of the condition. The video actually shows that the sweeps were inadequate at least as to the area where Plaintiff slipped. Thus, this video does not show that Defendant did not have actual notice or constructive notice of the incident. In fact, an argument could be made that the video is actually favorable evidence for the Plaintiff as it shows that the cursory attempts at a sweep but do not show an actual sweep of the area of the slip let alone even a visible inspection of the area. The evidence is arguably favorable to Plaintiff in that it may show that Defendant did have constructive notice at least 9 minutes before and 30 seconds before the incident when an employee came by the area, swept near the area, but did not look toward the area of the incident to see whether any dangerous conditions existed there.

In addition, contrary to Defendant's contention that Plaintiff did not know the source of the liquid, Plaintiff submitted evidence to show that the source of the liquid came from a small, smashed chili pepper. (Plaintiff's Ex. 3). Certainly, an inference could be made that a chili pepper either un-smashed or smashed should have been recognized with a visual inspection of the area and would have been either picked up or cleaned up.

Thus, Defendant's motion for summary judgment is denied.

Plaintiff is ordered to give notice of this ruling.